

SENATE No. 2235

The Commonwealth of Massachusetts

PRESENTED BY:

William N. Brownsberger

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to towing protections.

PETITION OF:

NAME:

William N. Brownsberger

DISTRICT/ADDRESS:

Suffolk and Middlesex

SENATE No. 2235

By Mr. Brownsberger, a petition (accompanied by bill, Senate, No. 2235) of William N. Brownsberger for legislation relative to towing protections. Telecommunications, Utilities and Energy.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 2085 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to towing protections.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 6B of Chapter 159B of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by inserting at the end of the third paragraph the following
3 words: “No other charges may be assessed for the towing or storage of a vehicle.”;

4 and further by inserting after the third paragraph the following two paragraphs:-

5 “The motor vehicle storage facility shall allow the owner of a car in its possession the
6 ability to remove any possessions that are not part of the car and/or physically attached to it from
7 said car if the individual is unable to pay the tow and storage fee in full.

8 The motor vehicle storage facility shall have a credit card reader on premises and shall
9 accept credit or debit card payments in addition to cash payments for vehicle removal and
10 storage charges.”.

11 SECTION 2. Section 120D of Chapter 266 of the General Laws, as so appearing, is
12 hereby amended in the first paragraph by inserting after the words:- “posted notice” the
13 following words:- “including current removal and storage fees as defined by the department”;

14 and further in the first paragraph by striking the following words:- “unless otherwise
15 specified by such chief of police or police commissioner”;

16 and further in the first paragraph by inserting after the words:- “shall include” the
17 following words:- “a photograph of the vehicle parking or standing on the private way”;

18 and further by inserting after the first paragraph the following paragraph:- “Any person
19 who removes a motor vehicle shall have a credit card reader within the tow vehicle being
20 operated and shall accept credit or debit card payments in addition to cash payments for vehicle
21 removal and storage charges.”;

22 and further by inserting at the end of the sixth paragraph the following words:- “Upon
23 payment, the person lawfully holding a vehicle removed or released before the towing is
24 completed shall provide a receipt itemized by the removal and storage charges. The receipt
25 should also include current removal and storage fees as defined by the department.”;

26 and further in the seventh paragraph by striking the following words:- “may, at his
27 discretion” and inserting in place thereof the following word:- “shall”.